

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KYLE HENDERSON HAILEY,

Petitioner

VS.

PATRICIA HENDERSON HAILEY,

Respondent

) Case Number: FDI-22-796862

) Hearing Date: June 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD SUPPORT TO MODIFY CHILD SUPPORT; SPOUSAL OR
PARTNER SUPPORT; CHILD TAX CREDIT/CLAIM TO EXEMPTION FOR CHILDREN;
VOCATIONAL EVALUATION FILED ON 09/16/25

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Kyle Henderson Hailey (Father) and Respondent Patricia Henderson Hailey (Mother).
- 2) On 9/16/25, Father filed a Request for Order seeking: (a) to modify child and spousal support, (b) orders related to child tax credit exemptions, and (c) an order for Mother to submit to a vocational evaluation. The matter was set for hearing on 11/19/25 in Dept. 416 because DCSS is involved in the case.
- 3) On 11/19/25, the Court issued the following orders (per the Amended Findings and Recommendation of Commissioner file dated 11/20/25):
 - a. An unallocated monthly support amount of \$5,000 retroactive to 11/4/24 per the agreement of the parties.
 - b. A vocational evaluation for Mother to be scheduled and completed.

- 1 c. The matter continued to 2/18/26 in Dept. 416 for review.
- 2 4) On 2/18/26, the matter was continued to 4/22/26 Dept. 414 by agreement of the parties.
- 3 5) On 4/22/26, the Court issued the following orders (per the Findings and Recommendation of
- 4 Commissioner file dated 4/22/26):
- 5 a. Effective 5/1/26, given that no guideline child support order was established at the time
- 6 the parties stipulated to family support, the Court issues an interim child support order in
- 7 the amount of \$1,505 per month, based on imputation of minimum wage to Mother. This
- 8 determination is made in absence of a prior guideline child support finding and is subject
- 9 to modification pending the findings of the vocational evaluator's report. This interim
- 10 guideline amount is not ordered for enforcement at this time.
- 11 b. Father shall continue to pay \$5,000 per month in combined child and spousal support
- 12 based on no objection from the parties.
- 13 c. The issue of determination of spousal support shall be heard on 6/18/26 in Dept. 403.
- 14 d. The matter is continued to 10/7/26 in Dept. 414 for review of the vocational evaluation.
- 15 e. Reservation of jurisdiction retroactive to filing date of the motion.
- 16 6) Neither party filed an update declaration

17 **B. Findings and Order**

- 18 1) Based on the procedural history set forth above, the Court finds the only matter at issue on
- 19 6/18/26 is determination of guideline temporary spousal support.
- 20 2) Neither party filed an update declaration; therefore, the Court presumes that the vocational
- 21 evaluation is not yet complete.
- 22 3) As such, and in accordance with the XSpouse report attached hereto and incorporated herein, the
- 23 Court finds Father owes Mother \$2,760 in guideline temporary spousal support effective 7/1/26.
- 24 4) This means that Father owes Mother \$1,505 in guideline monthly child support (per the Amended
- 25 Findings and Recommendation of Commissioner file dated 4/22/26) plus \$2,760 in guideline
- 26 monthly spousal support for a total monthly support order of \$4,265.
- 27 5) This interim guideline amount is not ordered for enforcement at this time because enforcement
- 28 would result in Father paying \$7,760 (\$5,000 in combined child and spousal support (pursuant to
- 29

1 the Findings and Recommendation of Commissioner file dated 4/22/26) + plus \$2,760 in
2 guideline monthly spousal support as determined herein).

3 6) Accordingly, Father shall continue to pay Mother \$5,000 per month in combined child and
4 spousal support, which is subject to modification pending the findings of the vocational
5 evaluator's report.

6 7) The Court reserves jurisdiction to modify support retroactive to 9/16/25 (i.e., the filing date of the
7 motion).

8 8) Counsel for Father shall prepare the Findings and Order After Hearing.

9 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
10 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
11 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
12 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
13 proposed order after hearing directly to the court. Failure to submit the order after hearing within
14 10 days may allow the other party to prepare a proposed order and submit it to the court in
15 accordance with CA Rules of Court, Rule 5.125(d).

2026**Fixed Shares**

	Father	Mother
Number of children	0	1
Percent time with NCP	49.99%	0.00%
Filing status	SINGLE HH/MLA	
Number of exemptions	1	2
Wages and salary	19875	0
Self employed income	0	3399
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	2373	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	402	0
Other medical expenses	0	0
Property tax expenses	0	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Father	13641
Mother	3169
Total	16810
Support	
Addons	0
Guideln CS	0
S.Clara SS	2760
Total	2760
-	

Settings changed**Proposed****Tactic 9**

CS	0
SS	2880
Total	2880
Saving	5
Releases	1

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	16811	16815
Percent change	0%	0%
Father		
Payment cost/benefit	-2760	-2691
Net spendable income	10881	10950
Change from guideline	0	69
% of combined spendable	65%	65%
% of saving over guideline	0%	1470%
Total taxes	5832	5642
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	9925	9925
Mother		
Payment cost/benefit	2760	2696
Net spendable income	5930	5865
Change from guideline	0	-65
% of combined spendable	35%	35%
% of saving over guideline	0%	-1370%
Total taxes	230	414
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	0	0

Father pays Guideline SS, Proposed SS

FC 4055 checking: **ON****Per Child Information**

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		50 - 50	0	0	0 Father	0 Father	0 Father
	0000-00-00	49 - 51	0	0	0 Father	0 Father	0 Father